

**Court No. - 1**

**Case :-** WRIT - C No. - 26026 of 2019

**Petitioner :-** Munni Lal Patel

**Respondent :-** State Of U.P. And 2 Others

**Counsel for Petitioner :-** Ajay Kumar Sinha

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble Ramesh Sinha,J.**

**Hon'ble Ajit Kumar,J.**

Heard Sri A.K. Sinha, learned counsel for the petitioner and Sri Mahboob Ahmad, appearing for the respondent Nos.2 and 3 and perused the record.

The petitioner has approached this Court against the order dated 26th December, 2018 passed on the application of the petitioner in purported exercise of power under Section 4.6(f) of the U.P. Electricity Supply Code, 2005.

Learned counsel appearing for the Electricity Department raises preliminary objection regarding maintainability of the writ petition on the ground that there is a forum created as Consumer Grievance Redressal Forum under the Electricity Supply Code, 2005 and the petitioner can challenge the order before the said authority and raise the grievance and get the grievance redressed.

In view of the above, we **disposed of** the said petition with a direction to the petitioner to approach the Consumer Grievance Redressal Forum positively within a period of three weeks from today. In such event if he moves application before the Forum, the same shall be considered strictly in accordance with law within a further period of six weeks.

**Order Date :-** 6.8.2019

Atmesh

(Ajit Kumar,J.) (Ramesh Sinha,J.)